

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
TRAVIS ROBINSON,

Plaintiff,

-against-

THE CITY OF NEW YORK,
NYPD DETECTIVE NELSON LOPEZ,
NYPD DETECTIVE MARK WORTHINGTON,
NYPD DETECTIVE CARL WORLSTROM,
NYPD DETECTIVE CARLOS PAGAN and
NYPD DETECTIVE CHARLES CARLSTROM,

Defendants.
----- X

Plaintiff designates
New York County as the
place of trial

Basis of venue is
county of occurrence

SUMMONS

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 17, 2018

SIVIN & MILLER, LLP

By 

Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

THE CITY OF NEW YORK, c/o Corporation Counsel, 100 Church Street, New York, NY 10007

NYPD DETECTIVE NELSON LOPEZ, c/o NYPD 30th Pct. Detective Squad, 451 W. 151st Street,
New York, NY 10031

NYPD DETECTIVE MARK WORTHINGTON, NYPD Detective Bureau Manhattan North
Homicide, One Police Plaza, New York, NY 10038

NYPD DETECTIVE CARL WORLSTROM,

NYPD DETECTIVE CARLOS PAGAN, NYPD 20th Pct. Detective Squad, 120 W. 82nd Street,
New York, NY 10024

NYPD DETECTIVE CHARLES CARLSTROM, c/o NYPD 30th Pct. Detective Squad, 451 W.
151st Street, New York, NY 10031

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
TRAVIS ROBINSON,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD DETECTIVE NELSON LOPEZ,
NYPD DETECTIVE MARK WORTHINGTON,
NYPD DETECTIVE CARL WORLSTROM,
NYPD DETECTIVE CARLOS PAGAN and
NYPD DETECTIVE CHARLES CARLSTROM,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN & MILLER, LLP, as and for his complaint herein,
alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a resident of the County of New York, City and State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter "the City") was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That prior to the institution of this action and within ninety (90) days from the dates when the causes of action accrued herein, a notice of claim and intention to sue was duly served upon and filed with defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the state-law causes of action

accrued herein.

4. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the "NYPD").

5. That at all times herein mentioned, defendant NYPD DETECTIVE NELSON LOPEZ (hereinafter "Lopez") was and is a police detective employed by the NYPD.

6. That at all times herein mentioned, Lopez was acting within the course and scope of his employment with the NYPD.

7. That at all times herein mentioned, Lopez was acting under color of state law.

8. That at all times herein mentioned, defendant NYPD DETECTIVE MARK WORTHINGTON (hereinafter "Worthington") was and is a police detective employed by the NYPD.

9. That at all times herein mentioned, Worthington was acting within the course and scope of his employment with the NYPD.

10. That at all times herein mentioned, Worthington was acting under color of state law.

11. That at all times herein mentioned, defendant NYPD DETECTIVE CARL WORLSTROM (hereinafter "Worlstrom") was and is a police detective employed by the NYPD.

12. That at all times herein mentioned, Worlstrom was acting within the course and scope of his employment with the NYPD.

13. That at all times herein mentioned, Worlstrom was acting under color of state law.

14. That at all times herein mentioned, defendant NYPD DETECTIVE CARLOS PAGAN (hereinafter "Pagan") was and is a police detective employed by the NYPD.

15. That at all times herein mentioned, Pagan was acting within the course and scope of his employment with the NYPD.

16. That at all times herein mentioned, Pagan was acting under color of state law.

17. That at all times herein mentioned, defendant NYPD DETECTIVE CHARLES CARLSTROM (hereinafter “Carlstrom”) was and is a police detective employed by the NYPD.

18. That at all times herein mentioned, Carlstrom was acting within the course and scope of his employment with the NYPD.

19. That at all times herein mentioned, Carlstrom was acting under color of state law.

THE FACTS

20. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

21. That on or about July 30, 2014, in the County of New York, City and State of New York, officers and detectives with the NYPD, including but not limited to Lopez, Worthington, Worlstrom, Pagan, and Carlstrom (hereinafter referred to collectively as “the officers”) forcibly seized and searched plaintiff without a warrant, without justification, without consent, and without probable cause or reasonable suspicion to believe that plaintiff committed or was about to commit any crime.

22. That after seizing and searching plaintiff, the officers detained, handcuffed, arrested, and imprisoned plaintiff and forcibly transported plaintiff to a police precinct.

23. That on or about July 31, 2014, the officers initiated and/or caused to be initiated a criminal prosecution of plaintiff, charging and/or causing plaintiff to be charged with various crimes, including gang assault, of which plaintiff was innocent and of which the officers knew plaintiff to be innocent.

24. That subsequent thereto, the officers initiated and/or caused to be initiated a further criminal prosecution of plaintiff, charging and/or causing plaintiff to be charged with the

additional crime of manslaughter, a crime of which plaintiff was innocent and of which the officers knew plaintiff to be innocent.

25. That in support of the aforesaid prosecution, Lopez signed a supporting deposition and Criminal Court Complaint in which he made accusations against plaintiff that were false and that he knew to be false.

26. That in support of the aforesaid prosecution, the officers knowingly conveyed false information and accusations about plaintiff to fellow officers, to the Office of the District Attorney, and to a Grand Jury.

27. That the aforementioned false information and accusations included, but were not limited to, an accusation that an eyewitness identified plaintiff as among several individuals who were present and participated in an assault on a victim who was shot and subsequently died, and an accusation that the shooter identified plaintiff as being present and participating in the assault of the victim.

28. That the aforesaid false information and accusations constituted material evidence in the prosecution of plaintiff, and evidence that was likely to influence a jury's decision on plaintiff's guilt or innocence.

29. That in support of the aforesaid prosecution, the officers also knowingly withheld exculpatory evidence from plaintiff, from the Office of the District Attorney, and from the Grand Jury.

30. That the withheld exculpatory evidence included, but was not limited to, evidence that actual participants in the assault on the victim affirmatively stated that plaintiff neither participated in nor was present during the assault of the victim.

31. That as a result of the actions of the officers, plaintiff was incarcerated for a

period of approximately four months following his July 30, 2014 arrest.

32. That in or around July 2016, the officers rearrested and/or caused plaintiff to be rearrested on an additional charge of manslaughter relating to the same incident with which plaintiff previously was charged with gang assault.

33. That the officers did not have probable cause to believe that plaintiff was guilty of any of the crimes with which he was charged.

34. That the officers did not have probable cause to believe that the prosecution against plaintiff would succeed, since they knew that the purported evidence upon which the prosecution was based was obtained by the officers illegally and/or by undue influence upon the individuals whom the officers claimed identified plaintiff as having participated in the assault on the victim.

35. That as a result of the false criminal charges that were initiated against plaintiff by the officers, the false information and accusations made by the officers, and the withholding of exculpatory evidence by the officers, plaintiff was required to make numerous court appearances and suffered a deprivation of his liberty.

36. That on or about November 14, 2017, all criminal charges against plaintiff were dismissed and the criminal proceeding terminated favorably to plaintiff.

37. That defendants' actions were intentional, malicious, and without excuse or justification.

38. That as a result of the actions of defendants, plaintiff sustained severe emotional distress and loss of liberty, endured and will continue to endure pain and suffering and loss of enjoyment of life, incurred and will continue to incur economic loss, and sustained other damages.

39. That all of the foregoing actions fall within one or more of the exceptions set forth in CPLR Article 16 with respect to joint and several liability.

FIRST CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983: Illegal Search and Seizure)

40. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

41. That the aforementioned actions of the officers in forcibly seizing and searching plaintiff without a warrant and then forcibly detaining plaintiff constituted unlawful searches and seizures of plaintiff in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

SECOND CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983: False Arrest/False Imprisonment)

42. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

43. That the aforementioned actions of the officers in arresting plaintiff without a warrant and without probable cause, and thereafter imprisoning plaintiff and/or causing plaintiff to be imprisoned, constituted unlawful seizures of plaintiff in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution Under State Law)

44. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

45. That the aforementioned actions of the officers in prosecuting plaintiff and/or

causing plaintiff to be prosecuted for crimes of which the officers knew plaintiff to be innocent constituted a malicious prosecution of plaintiff, for which the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983: Malicious Prosecution)

46. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

47. That the aforementioned actions of the officers in prosecuting plaintiff and/or causing plaintiff to be prosecuted for crimes of which the officers knew plaintiff to be innocent and with charges on which the officers knew the prosecution likely would not succeed constituted a malicious prosecution of plaintiff and an unlawful seizure of plaintiff in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983 Claim Based on Denial of Right to Fair Trial)

48. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

49. That the aforesaid actions by the officers in conveying false information and accusations about plaintiff constituted a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983 Claim Based on *Brady* Violation)

50. Plaintiff repeats and realleges each and every allegation set forth above as

though fully set forth at length herein.

51. That the aforesaid actions by the officers in withholding exculpatory evidence and information constituted a violation of plaintiff's rights under the Fourteenth Amendment to the United States Constitution and under *Brady v. Maryland*, 373 U.S. 83, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

SEVENTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983 Claim Based on Failure to Intervene)

52. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

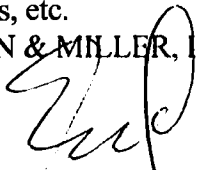
53. That at all times herein mentioned, each of the officers observed and/or had knowledge of the illegal and unconstitutional conduct of his fellow officers, had reasonable opportunities to intervene to prevent and/or stop that conduct, but deliberately failed to intervene.

54. That as a result of the deliberate failure of the officers to intervene, plaintiff sustained the injuries alleged herein and is entitled to recover damages against the officers under 42 U.S.C. § 1983.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against the officers, and attorney's fees against the officers pursuant to 42 U.S.C. § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
April 17, 2018

Yours, etc.
SIVIN & MILLER, LLP

By 
Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

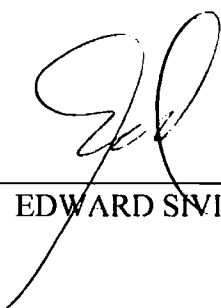
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) currently is not in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
April 17, 2018



EDWARD SIVIN

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Year 2018

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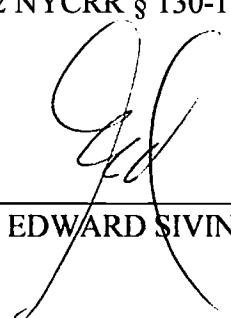
VERIFIED COMPLAINT

SIVIN & MILLER, LLP

Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
April 17, 2018